

STATE OF NEW YORK

4551--A

2025-2026 Regular Sessions

IN SENATE

February 6, 2025

Introduced by Sens. FAHY, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to degree-granting programs offered by SUNY's office of higher education in prison

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 355-f
2 to read as follows:

3 § 355-f. Office of higher education in prison. 1. Within amounts
4 appropriated therefor, there shall be created within the state universi-
5 ty of New York an office of higher education in prison with the purpose
6 of promoting and coordinating access to higher education for individuals
7 during and after incarceration in New York state. Such office shall:

8 (a) no later than January first, two thousand twenty-nine, develop and
9 implement a plan, approved by the chancellor of the state university of
10 New York or such chancellor's designee, to establish and operate a
11 degree-granting program in every correctional facility, as defined by
12 section two of the correction law, that is located in the state and
13 determined to be viable by such office; and

14 (b) enroll a total of at least two thousand students in degree-grant-
15 ing programs established under paragraph (a) of this subdivision as soon
16 as practicable.

17 2. The commissioner of the department of corrections and community
18 supervision shall work with the state university of New York and the
19 office of higher education in prison to maximize educational opportu-
20 nities for students in programs established under paragraph (a) of
21 subdivision one of this section, including access to federal and state
22 financial aid.

23 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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